



MARYLAND **REPUBLICAN** PARTY

February 3, 2026

Jared DeMarinis
State Administrator of Elections
Maryland State Board of Elections
151 West Street, Suite 200
Annapolis, MD 21401

Dear Mr. DeMarinis,

As requested, the Maryland Republican Party is submitting our comments and concerns regarding proposed changes to the challengers and watchers regulations. Following my comments here, I have included the comments from many members of our Republican County Central Committees for your review. As you will read, we have quite a few concerns and do not support the majority of the changes proposed.

I believe that my County RCC members have covered most of the points well, so I will be brief in my breakdown.

01. A1. I understand why “an individual” may be too generic, but limiting it to “a registered Maryland voter” may be too limiting. I can see instances when an outside observer is warranted or needed. Some members are suggesting “a United States citizen” instead.

01. A2. I love training, but I do believe there should be options of in-person, online, or even reading on their own.

01. B1&2 The points made above apply here as well.

01. C1. Why are we limiting people’s involvement in our election process? We’re trying to make it harder and more complicated when it shouldn’t be.

01. D2. Again, we’re making it complicated and harder for people to be involved. We need more transparency and availability in the process, not less.

01. D4 This is a real concern for my county central committees. This is too limiting. As the minority party in this state, we are often recruiting people all the way up until election day. I

**AUTHORITY MARYLAND REPUBLICAN PARTY;
R. CHRISTOPHER ROSENTHAL, TREASURER**

cannot tell you how many times in the last 10 years I have had people come to me at the very last minute and say they want to help. We need to be able to recruit and involve people up until the end of the election.

01. E This becomes burdensome not only for the County RCCs, but for the MDGOP. There will be times when someone gets sick or needs to be closer to home, and exchanges need to be made. Last-minute changes happen. This would require our paperwork to be prepared for any and all possible changes, which will be lengthy and complicated. Again, why are we discouraging people from participating and being less accessible?

02. C. (2) Absolutely opposed to changing “shall” to “may”. Words have legal definitions; this is a change the Maryland Republican Party cannot support.

Thank you for your time and attention to our feedback. If you have any questions or concerns regarding the MDGOP’s point of view on the proposed changes, please feel free to reach out to discuss.

Sincerely,



Nicole Beus Harris
Chairwoman
Maryland Republican Party

REPUBLICAN COMMENTS REGARDING CHALLENGER AND WATCHER CHANGES:

Changing a deadline for registering unduly handicaps the poll watchers and challengers from both parties. It is hard enough to get people committed day by day. To insist that everything be lined up prior to Day 1 of Early Voting poses an undue hardship on candidates, parties and Central Committees and really serves no purpose.

As a Chief Judge, I have no problem working with the current regulations and would prefer not to add one more problem when people appear with the paperwork and get turned away. You don't want to disenfranchise voters and these poll watchers and challengers are part of the election process and are working within the system in an orderly fashion.

Please leave the regs as they stand.

Thank You,
Mary Nelson
Chief Judge, Cecil County

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation.

This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not add this deadline. Thank you for your attention to this matter.

Sincerely,
Raymond Smith
Baltimore County Republican Central Committee

I reviewed the proposed changes that the SBE has put forward in such a disingenuous way with very little upfront notice, etc. These changes with respect to challengers and watchers during the voting process will create so much confusion and chaos. To require, among other things , that selection of watchers takes place prior to early voting, etc. really limits the number of watchers That will be able to participate. I am very opposed to their efforts to make these changes. I forwarded all types of information to each member of my Central Committee , as well, after Lodging my opposition to info.sbe@maryland.gov

Very sincerely,
Pamela Ciliberti
Chair
Frederick County Republican Central Committee

State Board Of Elections Members-

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new regulations to the designation process.

Among many issue I have with the regulation change, the most egregious the new imposed deadline. The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not pass this regulation change.

Respectfully submitted,
Kate Strauch Sullivan
Baltimore County Central Committee

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not add this deadline.

Respectfully submitted,
Ronald J. Calabrese
Baltimore County Central Committee

I serve as an Election Judge/Provisional Judge each election and I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not add this deadline.

Respectfully submitted,
Jean Benhoff
Baltimore County, MD

Regarding the poll watcher proposed regs, I would like to see more flexibility in when we can submit names for poll watchers, even if there could be a deadline for early voting and a second deadline for election day.

Thank you,
Jackie Gregory

I agree with every concern that Nicolee pointed out! If we want to work to ensure that voters trust election outcomes and maintain legitimacy, there should be as much transparency as possible throughout the process. We need to build trust in the vote, not give people reasons to think that it might not be secure or reliable. So these changes make absolutely no sense...they reduce the transparency of the process rather than building trust in the outcome. All the changes serve to make the process more restrictive.

"Shall" should not be changed to "may" anywhere in the document, as this gives the chief judge options as to what the watcher is permitted to do. "Verify" should not be changed to "observe" anywhere in the document, as this also makes the watcher role more restrictive.

Likewise, changing "individual" to "a registered Maryland voter" and requiring that watchers be designated the day prior to early voting work to make the process more restrictive.

As for C. Other designating entities. I'm confused by this section and unclear why a group would need to set up a PAC unless they are raising money. This also seems to make the process more restrictive. And for D. Certificate, 2....if there is no need for a PAC then there would be no need for the treasurer to sign....?? The addition of (d) makes no sense.

And for D. Certificate, 4, 5 as well as E. Substitutions. This seems unnecessarily broad. It would make more sense for the county chair to give any updates directly to the local election director rather than adding the additional layer of having the county chair give the MDGOP exec updates and then MDGOP having to pass those back down.

Julie Quick

Here are my thoughts:

Section 01 A. (1) I like the stipulation that it needs to be a registered Maryland voter. Prevents paid challengers and watchers.

01 B. (1) Ditto

01 C. (2) What defines a "designating entity" They should be registered Maryland voters also.

01 D. (2) How loose is the definition of Treasurer of an independent expenditure entity. How do they

prove they are the Treasurer?

(4) subsection C If they show a list, and the list clearly shows many polling places, wouldn't that be a flag?

I am thinking of paid watchers/observers becoming disruptive. I would prefer limiting the

number of polling places.

(5) If you don't get the paperwork into BOE, it "may" result in nonaccreditation? Should be no. Time limits

mean time limits.

That's it.

Respectfully submitted,
Jennifer Boyd

I've been a Poll Watcher and an Election Judge. The proposed change is wholly unnecessary. Elections are for citizens to participate, and this change is just another way to discourage participation.

When I visited various polling places in Baltimore County, I was welcomed by the chief judges, and the process was both simple and routine. As a judge, I was inspired by the people who were willing to take time out of their day to visit and observe the process. If you add the proposed requirement, you will be adding an additional burden on the chief judges and creating an upset with those concerned citizens who jump in at the last minute to witness and be a part of our election process.

I urge you to leave things as they are and withdraw the proposed change.

Sincerely,
Barry Chodak
Baltimore County Resident and Concerned Citizen

Members of the State Board of Elections,

I am writing to urge the State Board of Elections to maintain the existing Challenger and Watcher process. The current form from a designated entity is adequate and should remain in place. Similarly, the existing deadline works well. As such, I am requesting, do not impose a new deadline or change the required form.

A new deadline during an election year will cause undue hardship for Election Judges who already have a difficult role. To create additional confusion and possible conflict at polling places when citizens are denied entry will only complicate existing challenges.

For these reasons, the SBE should not change the process for watchers and challengers.

Sincerely,
Shelley M. Aloï
Frederick Republican County Central Committee

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not add this deadline.

Respectfully,

Kelly McGuire, Treasurer

Frederick County Republican Central Committee

Hello,

I am writing to request the State Board of Elections maintain the current process for Election Challengers and Watchers and refrain from passing the recently proposed COMAR amendments to these rules. The amendments being discussed would be detrimental to the election process by unduly restricting the rights of designated entities to appoint Poll Watchers/Challengers and by causing significant confusion and discord on Election Day.

Maryland Election Law states that candidates, parties, and other specified entities have "the right to designate a registered voter as a challenger or a watcher at each place of registration and election...." Further, the law states that "[a] certificate signed by any party or candidate shall be sufficient evidence of the right of a challenger or watcher to be present in the voting room." Simply, designated entities have the right to select their volunteers, and the only validation required is a certificate they sign. To impose additional requirements on this process - namely, requirements to submit pre-selected names and locations to the local Boards of Elections by a set deadline - would be a significant infringement, and seemingly a direct violation, of the Law and of the various entities' rights recognized under said law.

In addition to the lack of justification for these rule changes being considered, making the changes at this point in the middle of an election season would cause significant confusion during the election. Many candidates, party organizations, etc., are accustomed to the current rules. It is easy to foresee how many of them could be unaware of the change, attempt to designate watchers past the proposed deadline, and then find their organizations denied access at the polls, past the point by which this could be remedied, leading to significant arguments at the polls and a very messy election.

For these and other reasons, I strongly ask that the Board oppose the changes to the procedures being discussed, in the name of the rights of all involved and a smooth, fair election.

Sincerely,

Neil Posner

Baltimore County Republican Central Committee

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

Observation is an important part of a free and fair democratic process. We should have MORE transparency, not less! You allow same day voter registration, but require poll watchers a limited window?

For these reasons, the SBE should not add this deadline. It is truly unconscionable.

Respectfully submitted,
Janice Grim
Baltimore County Central Committee

Dear Board of Elections,

What most concerns me about the proposed changes is the confusion now caused by the new provision in Section .01D(4), which says that a designating entity must provide a completed certificate for any challenger or watcher "not later than 1 business day before the start of early voting."

Does that mean certificates for all watchers and challengers must be submitted before the first day of early voting, or can they be submitted before the start of any day of early voting or election day?

How does this provision work with the provision in .01E dealing with substitutes?

What is the purpose for this provision? At the least, please clarify.

Many thanks,
Trent Kittleman

Dear MDGOP and Anne Arundel County Central Committee Chairman:

I am writing to request that you let the State Board of Elections know that I strongly oppose the proposed changes to COMAR Title 33, Subtitle 07, Chapter 07 Challengers and Watchers

I am asking you two to forward my opposition because the State Board of Elections has a demonstrated bad track record of distributing information delivered using their "approved process" to all Board members.

The main reason for my opposition is these proposed changes make it unnecessarily difficult for citizens to execute their civic duty to monitor elections in Maryland. The changes create a wider divide between the citizens and to those who thankfully execute the election. The result is reduced transparency, reduced confidence, and greater distrust in our election system.

The first major change is limiting it to Maryland registered voters. Every Marylander and every US Citizen needs to be able to monitor our elections to guarantee they are executed in a manner that follows all the procedures to guarantee Maryland elections are free and fair.

The second major change that I oppose is requiring everyone to submit the signed applications with names and precincts to local election administrator "not later than 1 business day before early voting." This create an extraordinary high threshold for the sign up of the Challengers and Watchers. First, this creates a huge and unnecessary administrative burden for parties, committees, and candidates to recruit, plan, document, and submit completed applications prior to submission. In addition, the groups cannot change polling place locations after the initial submission of a watcher. They can only substitute one name for another. Finally, Challengers and Watchers normally make them selves known known and available well after early voting starts and plan to only work on Election Day.

The third change is the review of "instructions". I have been an election judge for multiple elections and also have been a watcher during early and on Election Day. I have seen different forms of "instructions" and they do not conflict with Election Law or COMAR. The "instructions" exist to help educate new challengers and watchers based on the experiences of past judges and challengers. The result will be groups will not mentor new volunteers if they must get things reviewed and approved in advance. This will result in less qualified challengers and watchers monitoring our elections.

Finally, I strongly oppose the change from “shall” to “may” in section “.02.C.(2)”. It is critical that an accredited challenger and watcher be able to observe the seals and counters during a "convenient time" while the polls are open. I have seen and heard of cases where the Chief Judge was not supportive of challengers and watchers and as a result made it very difficult for them. Changing to “may” gives the Chief Judge the ability to legally deny any or worse selective deny challengers and watchers based on their own feelings and judgement. This subjective decision should never be the case.

All changes should be made to address a problem. It is not clear based on my own experience and the experience of others that there is a problem with the current COMAR processes or a problem caused by challengers and watchers that require drastic changes to COMAR. The current COMAR and processes allow the Chief Judge to remove a challenger and watcher if they are being disruptive to voters and the overall voting process. Challengers and Watchers are “instructed” to be civil and respectful and build a positive relationship with the two Chief Judges.

For these reasons I strongly recommend that you oppose and vote against these COMAR changes.

David Morsberger

I am writing to request that you inform the State Board of Elections of my strong opposition to the proposed changes to COMAR Title 33, Subtitle 07, Chapter 07 (Challengers and Watchers). I am asking you to forward my opposition because the State Board has a demonstrated poor track record of distributing information submitted through their "approved process" to all Board Members.

OVERALL CONCERN

These proposed changes unnecessarily restrict citizens' ability to fulfill their civic duty to monitor elections in Maryland, creating unrealistic barriers to election transparency.

SPECIFIC OBJECTIONS

1. UNREALISTIC SUBMISSION DEADLINE (Application Requirement)

The requirement to submit applications with names and precincts to local election administrators no later than 1 business day before early voting begins is incompatible with the volunteer-based nature of election monitoring. Our watchers and challengers are volunteers performing civic duties around demanding personal schedules, which requires flexibility. To properly staff polling places, we must have the ability to reassign watchers and challengers up to and including their scheduled shifts. Active citizen engagement is critical to election integrity, and these obstacles create unrealistic barriers that will reduce participation.

2. RESTRICTION TO MARYLAND REGISTERED VOTERS (Designating Entity Section)

Accreditation should be open to any U.S. Citizen. Every citizen is affected by election outcomes and should be able to participate in the monitoring process. Many local residents—especially those associated with Maryland's military installations—are directly impacted by election results and should be permitted to serve as watchers or challengers, regardless of their voter registration status.

3. OVERLY COMPLEX "ACCREDITED CHALLENGER" REQUIREMENT (Designating Entity Section)

The proposed "accredited challenger" requirement is unnecessarily convoluted. A more logical approach would be to adopt a process similar to the Volunteer Voter Registration certification procedure:

- Establish a certification program through online, Zoom, or in-person training well before

mail-in ballots are distributed

- Provide both a statewide training module and county-specific modules for each jurisdiction where a watcher/challenger wishes to be certified
- Upon completing training and certification, these individuals would be authorized to sign forms for watchers/challengers

This would streamline the process while maintaining proper oversight.

CONCLUSION

Regulatory changes should only be made to address specific, documented problems. Based on my experience, these proposed changes are unnecessary and will create more problems than they solve by discouraging volunteer participation in election monitoring.

Thank you for your attention to this important matter.

Respectfully,

Mary Phelps

To: Nicole Harris, Chairman MDGOP
Diane Butler, State Board of Elections

Re: Opposition to SBE Regulation Change for Challengers and Poll Watchers

The Baltimore County Republican Central Committee opposes the proposed change to regulations for Challengers and Poll Watchers in SBE Section 33.07 Chapter 07 (D) (4). This proposed change requires::

- a list of designated Challengers and Poll Watchers be submitted to the Local Board of Elections one day prior to Early Voting:
- Completed Certification Forms
- List of Polling Places the Challengers and Poll Watchers will attend

The requirement to submit the names of Challengers and Poll Watchers one day before Early Voting will inhibit and reduce the number of people able to serve the community during the Election process. This proposed change will suppress the people's rights to observe and participate in the Elections. The BCRCC strongly believes people should be allowed to sign up to be Challengers and Poll Watchers up until Election Day.

We strongly request this proposed change to Challengers and Poll Watchers in SBE 33.07.7 (D) (4) be revoked.

Thank you for your consideration to this matter.

Patty Fallon
Chair, Baltimore County Republican Central Committee

I strongly request that the State Board of Elections keep the Challenger and Watcher process unchanged and not impose any new deadline.

The signed form from a designated entity should remain sufficient. Adding a new deadline would be unreasonable, create confusion, and lead to unnecessary conflict at polling places when citizens—unaware of the change—are denied entry despite having valid documentation. This would place an unfair burden on Election Judges and disrupt orderly election administration.

For these reasons, the SBE should not add this deadline.

Respectfully submitted,
Pamela Ciliberti
Chair, Frederick County Republican Central Committee

Maryland State Board of Elections:

It was our understanding that amendments to state law required public input.
If changes are made to Title 33 subtitle 07 pertaining to Challengers/Watchers, has the conflict with chapter 6 Identification requirements been considered?

The individual has previously submitted to the local board a copy of personal identification information.

The requirements for Challengers/Watchers is more onerous than voting, which has no requirement for identification if identification has been previously submitted.. The duty of the Challenger/Watcher is simply to "observe, review, see, hear."

Challenging/Watching an election should not be more burdensome than voting, and is a citizen's duty. Impediments should not be a part of our voting process.

Sincerely,
Sheila Jennifer
Howard County Republican Central Committee, member

To the Maryland Board of Elections,

Thank you for the opportunity to submit written testimony regarding the proposed amendments to COMAR 33.07.07, Election Day Activities – Challengers and Watchers. I appreciate the efforts of the State Board of Elections to ensure orderly and transparent elections; however, I have significant concerns with several of the proposed changes, particularly given the lack of meaningful input from the state political parties and Central Committees prior to advancing these amendments.

Because these regulations directly affect the ability of citizens, parties, and election integrity groups to observe the electoral process, I believe it is critically important that these stakeholders be fully heard.

1. Definition of Eligible Individuals (Section A.1)

The proposed change replaces “an individual” with “a registered Maryland voter.” I strongly oppose this limitation. I believe the language should instead refer to a “United States citizen.” Election observation is a fundamental transparency function, and restricting observers only to registered Maryland voters unnecessarily limits standing. Many reputable election integrity organizations include members from other states, and citizen observation should not be curtailed absent a compelling reason.

2. Mandatory Training Requirement (Sections A.2 and B)

The proposal appears to require attendance at a training session rather than allowing the alternative of reviewing State Board–provided materials. I believe the regulation should clearly state “attend a training session or review State Board information.” Citizens are fully capable of understanding the rules through written or online materials, and mandatory in-person or scheduled training creates unnecessary barriers to participation, effectively restricting citizens’ ability to serve as challengers or watchers and undermining their fundamental right to observe and safeguard the integrity of the electoral process.

3. Limitation on Designating Entities (Section C and D.2(d))4. Designation Deadlines (Section D.4)

I am deeply concerned by the proposed language requiring that a group of voters be a political action committee (PAC) or an entity otherwise subject to campaign finance disclosure in order to designate challengers or watchers. This change would disenfranchise many Maryland citizens who seek to

participate in election oversight through grassroots or nonpartisan election integrity organizations that engage in no campaign activity and therefore are not PACs. Conditioning the right to observe elections on political or financial status infringes upon citizens' First Amendment rights to free association and civic participation, while creating unequal treatment among similarly situated citizens based solely on organizational structure. Moreover, by excluding nonpartisan and citizen-led groups, the regulation unnecessarily narrows election oversight to a limited class of politically affiliated entities, thereby reducing transparency and undermining public confidence in the electoral process. Election observation should be broadly accessible to citizens and not restricted to PACs or party-affiliated organizations.

4. Designation Deadlines (Section D.4)

The requirement that watchers or observers be designated no later than one business day before the start of early voting is overly restrictive. Elections are dynamic, and circumstances change. There should be flexibility to designate watchers or observers at any time during early voting or on Election Day itself. This is an important safeguard for transparency and accountability.

5. Substitution Requirements (Section E.5)

The substitution process, as proposed, requires written submission to the local election director prior to any substitution. In practice, this would force Central Committees to submit overly broad and duplicative designation letters covering every possible precinct in advance, simply to preserve flexibility. This does not simplify administration for local election directors and instead creates additional complexity and paperwork for all parties involved. For this reason, I opposed this provision.

6. Use of "Shall" vs. "May" (Section .02 C.(2))

I support the use of "shall" rather than "may." The word "may" raises concern that a judge of elections could deny observation at their discretion. Observation should be a guaranteed right when statutory and regulatory requirements are met, not a discretionary privilege.

In closing, these proposed amendments must be considered in the context of widespread and growing concern among Marylanders regarding election integrity and confidence in the electoral process. Public trust is not strengthened through restriction or exclusion, but through transparency,

accountability, and meaningful citizen participation. At a time when the State Board of Elections is already under heightened public scrutiny and facing ongoing litigation, adopting regulations that further limit lawful observation risks deepening public distrust and exacerbating existing concerns about the administration of elections in this State. The State Board has a responsibility to take every reasonable step to build, not diminish, citizen confidence. I respectfully urge the Board to reconsider these amendments, meaningfully engage with state parties and Central Committees, and avoid changes that could further erode trust in Maryland's electoral system.

Thank you for considering these comments.

Respectfully,

Michell Schalik
Secretary, Howard County Republican Central Committee
Glenelg, Maryland

Comments on Title 33 STATE BOARD OF ELECTIONS

Subtitle 07 ELECTION DAY ACTIVITIES

Chapter 07 Challengers and Watchers

.01 Designating Entities

Paragraphs A (1) and B (1).

Agree that the current language “an individual” is probably too vague. An individual could be anybody. A better rendition would “an American citizen” or “a United States citizen”. Given we live in these United States, restrictions beyond that of an American citizen are overly restrictive.

Paragraphs A (2) and B (2).

Individuals should only be required to either read the State Board information or attend a training session and not both.

Paragraphs C (2) and D (2) (d)

This is overly burdensome and restrictive. Independent groups not advocating for the election or defeat of candidates, but which are engaged in working to improve the political process for fairer, freer and more transparent and accountable elections, should not be regulated as political action committees. Plus, what constitutes a group? Nasty details here...

Paragraph D (4) and E (5)

There should be no restriction on when someone, if properly credentialed, can join the process. Many people wake up and become interested and active around the time of an election and shouldn't be penalized for getting a late start as an observer.

Properly credentialed substitutions should not be restricted. Not only does it cuff groups and individuals attempting to participate in the process but imposes burdens on local county board of elections trying to track and control individuals.

.02 Permissive Activities of Accredited Challengers or Watchers

Paragraph C (2) “may” is NOT appropriate. “May” has no force of presence or law. Verbiage should be something else retaining shall, something like “shall be able to”

F. Steve Brown

Chair

Republican Party Central Committee of Howard County

General Comment (Process Objection)

The proposed amendments to COMAR 33.07.07 were developed without meaningful consultation with recognized State political parties or local Central Committees. Because challengers and watchers are an essential transparency mechanism in Maryland elections, any changes affecting accreditation, eligibility, and permissible activities must include stakeholder input from those entities that regularly recruit, train, and deploy poll watchers. The absence of such consultation undermines confidence in the regulatory process itself.

Section-by-Section Substantive Comments

§33.07.07.01 A & B — Limiting Challengers/Watchers to Registered Maryland Voters

Problem:

The regulation restricts challengers and watchers to registered Maryland voters only.

Why This Is Overly Restrictive:

- Election observation is a civic transparency function, not an act of voting.
- Many qualified observers (e.g., attorneys, compliance experts, former election officials, party staff, and trained volunteers) may be U.S. citizens but not Maryland-registered voters.
- This restriction unnecessarily limits the pool of trained observers and disproportionately harms smaller parties and grassroots organizations.

Suggested Amendment:

Replace “registered Maryland voter” with:

“a United States citizen who is eligible to observe elections and has been properly accredited by the designating entity.”

Rationale:

Other states allow non-resident U.S. citizens to serve as poll watchers. There is no demonstrated risk created by allowing trained, accredited U.S. citizens to observe polling places.

§33.07.07.01 C — Designating Entities Limited to PACs or Regulated Committees

Problem:

The regulation requires that a “group of voters” designating challengers/watchers must be a political action committee (PAC) or an entity required to file campaign finance disclosures.

Why This Is Improper:

- Poll watching is not campaign spending and should not be regulated as such.
- This requirement forces civic groups and grassroots organizations into campaign-finance structures unrelated to election observation.
- It chills participation by ordinary voters seeking transparency, not political advocacy.

Suggested Amendment:

Allow:

“any bona fide group of voters, political party organization, or civic organization”

to designate challengers and watchers, without requiring PAC status.

§33.07.07.01 D — Certification and Signature Requirements

Problem:

The certification process is unnecessarily complex and restrictive, especially for volunteer-driven organizations.

Concerns:

- Requiring original signatures and narrow categories of signatories creates administrative barriers.
- Smaller or decentralized groups may not have a formal “chair” or “treasurer.”

Suggested Amendment:

Permit electronic signatures and allow certification by:

“any authorized representative designated in writing by the designating entity.”

§33.07.07.01(4) & (5) — Deadlines and Automatic Non-Accreditation

Problem:

Failure to submit paperwork by strict deadlines may result in automatic non-accreditation, with no cure period.

Why This Is Excessive:

- Minor clerical errors should not eliminate lawful observers.
- This provision creates a mechanism for disenfranchising transparency, not protecting elections.

Suggested Amendment:

Add a reasonable cure period (e.g., 48–72 hours) to correct deficiencies before accreditation is denied.

§33.07.07.02 — Permissive Activities During Voting Hours

Problem:

The regulation gives Chief Judges broad discretion to limit watcher positioning and observation.

Concerns:

- Over-discretion can lead to inconsistent enforcement across precincts.
- Watchers must be able to meaningfully observe, not merely be present.

Suggested Amendment:

Clarify that accredited watchers:

- Have a presumptive right to observe check-in, seal verification, and closing procedures;
 - May not be restricted unless their conduct materially interferes with election administration.
-

§33.07.07.03 — Prohibited Acts (Political Materials)

Comment:

While prohibitions on campaigning inside polling places are appropriate, the definition of “political materials” should be clarified to ensure it does not include training manuals, legal references, or election law materials used by challengers and watchers.

Closing Statement

Election challengers and watchers exist to enhance public confidence, not to disrupt elections.

Regulations that unnecessarily narrow eligibility, impose campaign-finance requirements, or create procedural traps undermine transparency and disproportionately burden grassroots participation. The State Board should revise these amendments to favor access, clarity, and uniformity, not restriction.

Nancy Shih

Howard County Republican Central Committee